

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Melanyn Rivas	Team: Squad #09	CCRB Case #: 202301585	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/08/2023 2:05 PM, Wednesday, 02/08/2023 4:54 PM	Location of Incident: 500 Abbot Street Inside the 49th Precinct stationhouse	18 Mo. SOL 8/8/2024	Precinct: 47		
Date/Time CV Reported Fri, 02/10/2023 10:55 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/23/2023 2:56 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Konti Markvukaj	06254	956883	NARCB BX
2. DT3 Theresa Lustica	06169	956859	NARCB BX
3. SGT DS Erik Duran	01423	948476	NARCB BX
4. DT3 Ferdi Memedoski	06508	942190	NARCB BX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Joe Bassat	00229	950054	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Konti Markvukaj	Discourtesy: At 500 Abbot Street in the Bronx, Detective Konti Markvukaj spoke discourteously to § 87(2)(b)	
B . DT3 Theresa Lustica	Discourtesy: At 500 Abbot Street in the Bronx, Detective Theresa Lustica spoke discourteously to § 87(2)(b)	
C . DT3 Theresa Lustica	Force: At 500 Abbot Street in the Bronx, Detective Theresa Lustica used physical force against § 87(2)(b)	
D . DT3 Theresa Lustica	Abuse: Detective Theresa Lustica searched § 87(2)(b)	
E . DT3 Theresa Lustica	Discourtesy: At 500 Abbot Street in the Bronx, Detective Theresa Lustica acted discourteously toward § 87(2)(b)	
F . SGT DS Erik Duran	Abuse: At 500 Abbot Street in the Bronx, Sergeant Erik Duran threatened § 87(2)(b) with the use of force.	
G . DT3 Konti Markvukaj	Abuse: At 500 Abbot Street in the Bronx, Detective Konti Markvukaj threatened to seize § 87(2)(b)'s property.	
H . DT3 Konti Markvukaj	Abuse: At the 49th Precinct stationhouse, Detective Konti Markvukaj refused to provide his name to § 87(2)(b)	
I . DT3 Konti Markvukaj	Abuse: At the 49th Precinct stationhouse, Detective Konti Markvukaj refused to provide his shield number to § 87(2)(b)	
J . DT3 Theresa Lustica	Abuse: At the 49th Precinct stationhouse, Detective Theresa Lustica refused to provide her shield number to § 87(2)(b)	
K . DT3 Theresa Lustica	Abuse: At the 49th Precinct stationhouse, Detective Theresa Lustica refused to provide her name to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
L . DT3 Ferdi Memedoski	Abuse: At the 49th Precinct stationhouse, Detective Ferdi Memedoski refused to provide his name to § 87(2)(b)	
M . DT3 Ferdi Memedoski	Abuse: At the 49th Precinct stationhouse, Detective Ferdi Memedoski refused to provide his shield number to § 87(2)(b)	

Case Summary

On February 10, 2023, § 87(2)(b) called the Internal Affairs Bureau (IAB) and filed this complaint on behalf of himself. On February 23, 2023, the complaint was received at the CCRB.

On February 8, 2023, at approximately 2:05 p.m., § 87(2)(b) was double parked near 500 Abbott Street, in the Bronx, when Detective Konti Markvukaj, approached and told him, “Fucking move” (**Allegation A: Discourtesy**, § 87(2)(g)). Detective Theresa Lustica told § 87(2)(b) “I’m not going to let you talk to my fucking partner that way” (**Allegation B: Discourtesy**, § 87(2)(g)). Det. Lustica then forcefully pulled § 87(2)(b) out of the van (**Allegation C: Force**, § 87(2)(g)), grabbed his wallet from his back pants pocket and threw his wallet on top of his van (**Allegation D: Abuse of Authority**, § 87(2)(g)), (**Allegation E: Discourtesy**, § 87(2)(g)). Sgt. Erik Duran approached and threatened to break § 87(2)(b)’s arm (**Allegation F: Abuse of Authority**, § 87(2)(g)), while Det. Markvukaj threatened to seize his vehicle (**Allegation G: Abuse of Authority**, § 87(2)(g)).

At the 49th Precinct stationhouse, § 87(2)(b) requested the names and shield numbers of Det. Lustica, Det. Markvukaj and Det Ferdi Memedoski, all of whom failed to provide it (**Allegations H, I, J, K, L, M: Abuse of Authority**, § 87(2)(g)).

§ 87(2)(a) 160.50

§ 87(2)(b) provided two photos in relation to this incident (Board Review 10, 12).

There is no body-worn camera video associated with this incident as officers assigned to the Narcotics Division have not been equipped with BWC. Stationhouse footage from the 49th PCT was received in relation to this incident (Board Review 11).

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Discourtesy: At 500 Abbot Street in the Bronx, Detective Konti Markvukaj spoke discourteously to § 87(2)(b)

Allegation (B) Discourtesy: At 500 Abbot Street in the Bronx, Detective Theresa Lustica spoke discourteously to § 87(2)(b)

Allegation (C) Force: At 500 Abbot Street in the Bronx, Detective Theresa Lustica used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: Detective Theresa Lustica searched § 87(2)(b)

Allegation (E) Discourtesy: At 500 Abbot Street in the Bronx, Detective Theresa Lustica acted discourteously toward § 87(2)(b)

Allegation (F) Abuse of Authority: At 500 Abbot Street in the Bronx, Sergeant Erik Duran threatened § 87(2)(b) with the use of force.

Allegation (G) Abuse of Authority: At 500 Abbot Street in the Bronx, Detective Konti Markvukaj threatened to seize § 87(2)(b)’s property.

§ 87(2)(b) stated that he was driving his work vehicle, a Silver Ford Transit, when he pulled up and parked the vehicle on the shoulder of the road in the vicinity of 500 Abbott Street in the Bronx. There were a number of vehicles that were double parked on the road, which made it impossible for § 87(2)(b) to move, and there was also a tow truck ahead that was blocking traffic. An unmarked

vehicle, that was directly behind § 87(2)(b)'s vehicle, and had Detective Markvukaj and Lustica inside, honked at § 87(2)(b) and also activated their sirens. § 87(2)(b) used his hand to signal the police vehicle to move around his vehicle since he was parked and could not move, but the police vehicle continued to honk at § 87(2)(b). At some point, the police vehicle drove past § 87(2)(b) and Det. Markvukaj, said to § 87(2)(b) "Fucking move." § 87(2)(b) responded, "I'm not your son, you don't talk to me like that." Det. Lustica then interjected and said, "I'm not going to let you talk to my fucking partner that way." § 87(2)(b) replied "Fuck you too. You know what? Suck my dick." Det. Lustica got out of the police vehicle, walked up to § 87(2)(b)'s driver's side, and asked him for his identification. § 87(2)(b) refused. Det. Lustica opened § 87(2)(b)'s driver's side door, grabbed § 87(2)(b)'s shoulders, and pulled him out of the vehicle. Det. Lustica then threw § 87(2)(b)'s wallet which was in his back pants pocket on top of his van. Meanwhile Sgt. Duran, who was in a vehicle behind Det. Markvukaj and Det. Lustica, walked up to the scene. Det. Markvukaj, Det. Lustica, and Sgt. Duran held § 87(2)(b) up against the van, but § 87(2)(b) stated that he was not tensing up his arms but also was not allowing the officers to turn him around to handcuff him. Sgt. Duran then said to § 87(2)(b) "I'll break your fucking arm right now." Det. Markvukaj followed up and said to § 87(2)(b) "I'll take your van and it will be months before you see it again." § 87(2)(b) was removed to the 49th Precinct stationhouse, where he was issued a desk appearance ticket for disorderly conduct and released (Board Review 09).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b)'s vehicle was also parked in a manner that obstructed the free flow of traffic, and he refused multiple orders to move his vehicle. § 87(2)(b) further refused to provide identification when the officers elected to stop his vehicle and issue him a summons for obstructing traffic. The officers thus decided to remove him to a police precinct and issue him the summons there since he was refusing to provide identification. Det. Lustica acknowledged searching § 87(2)(b)'s pocket and removing his wallet after he was placed under arrest, but denied throwing the wallet on top of the van (Board Review 05). Sgt. Duran, Det. Markvukaj's, Det. Memedoski, and Det. Lustica all denied using profanity towards § 87(2)(b). § 87(2)(b) denied using any force against him, said § 87(2)(b) exited the vehicle on his own accord, and that officers brought his hands behind his back and handcuffed him. The officers further denied threatening § 87(2)(b) with the use of force, denied threatening to seize § 87(2)(b)'s vehicle, nor did they witness any other officer take such actions.

A photo provided by § 87(2)(b) depicts his silver Ford Transit van in the background, but does not capture any pavement markings nor does it clearly indicate where § 87(2)(b)'s van was parked (Board Review 10).

§ 87(2)(b), § 87(2)(g)

Patrol Guide Procedure 208-03 states that after an arrest has been affected, and the prisoners have been handcuffed, an officer must immediately search/frisk the prisoners (Board Review 13).

§ 87(2)(b), § 87(2)(g)

Allegation (H) Abuse of Authority: At the 49th Precinct stationhouse, Detective Konti Markvukaj refused to provide his name to § 87(2)(b)

Allegation (I) Abuse of Authority: At the 49th Precinct stationhouse, Detective Konti Markvukaj refused to provide his shield number to § 87(2)(b)

Allegation (J) Abuse of Authority: At the 49th Precinct stationhouse, Detective Theresa Lustica refused to provide her shield number to § 87(2)(b)

Allegation (K) Abuse of Authority: At the 49th Precinct stationhouse, Detective Theresa Lustica refused to provide her name to § 87(2)(b)

Allegation (L) Abuse of Authority: At the 49th Precinct stationhouse, Detective Ferdi Memedoski refused to provide his name to § 87(2)(b)

Allegation (M) Abuse of Authority: At the 49th Precinct stationhouse, Detective Ferdi Memedoski refused to provide his shield number to § 87(2)(b)

It is undisputed that Det. Markvukaj, Det. Memedoski and Det. Lustica arrested and removed § 87(2)(b) to the 49th precinct stationhouse where he was then released with a desk appearance ticket.

§ 87(2)(b) acknowledged being brought to the 49th Precinct stationhouse, and lodged in the cells. At some point, he was brought to the front desk and Det. Markvukaj issued him a desk appearance ticket § 87(2)(a) 160.50. He then directly asked Det. Markvukaj, Det. Lustica, and Det. Memedoski for their name and badge numbers, but none of the detectives provided the information, and one of the male officers told him to leave the stationhouse.

Stationhouse footage captures § 87(2)(b)'s arrival at the stationhouse, but it does not capture the period leading up to his release (Board Review 11). § 87(2)(b), § 87(2)(g)

Det. Markvukaj's, Det. Memedoski, and Det. Lustica all denied that § 87(2)(b) requested their names and shield numbers, nor did they refuse to provide their names and badge numbers to § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 02).
- Det. Lustica has been a member of the service for nine years and has been a subject in six CCRB complaints and twenty-six allegations, none of which were substantiated. § 87(2)(g)
- Det. Markvukaj has been a member of the service for nine years and has been a subject in seven CCRB complaints and thirty-three allegations, of which four were substantiated.:
 - 201806187 involved substantiated allegations of Abuse - Body Cavity Searches against Det. Markvukaj. The Board recommended Command Discipline - A and the NYPD imposed Command Discipline - A.
 - 201603962 involved substantiated allegations of Abuse - Question, Abuse - Stop, and Abuse - Strip-searched against Det. Markvukaj. The Board recommended Command Discipline - A and the NYPD imposed Command Discipline - A. § 87(2)(g)

- Det. Memedoski has been a member of the service for seventeen years and has been a subject in five CCRB complaints and eleven allegations, of which two were substantiated.:
 - 201806187 involved substantiated allegations of Abuse - Stop and Abuse – Vehicle Search against Det. Memedoski. The Board recommended Command Discipline – B and the NYPD imposed Command Discipline – B. § 87(2)(g)
- Sgt. Duran has been a member of the service for fourteen years and has been a subject in eight CCRB complaints and twenty-two allegations, of which one was substantiated.:
 - 202200580 involved substantiated allegations of Abuse – Stop against Sgt. Duran. The Board recommended Command Discipline – A and the NYPD imposed Command Discipline – A. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of December 14, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim filed by § 87(2)(b) with the New York City Comptroller’s Office relevant to the date and address of the incident (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 9

Investigator:	<u>Melanyn Rivas</u>	<u>Investigator Melanyn Rivas</u>	<u>05/19/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Enoch Sowah</u>	<u>Print Title & Name</u>	<u>06/10/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u>Signature</u>	<u>Print Title & Name</u>	<u>Date</u>
	Signature	Print Title & Name	Date